

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 HOUSE BILL 3959

By: Munson

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5
6 AS INTRODUCED

7 An Act relating to technology; creating the
8 Protecting Consumers and Jobs from Predatory Pricing
9 Act; providing definitions; directing food retail
10 establishments that use personalized algorithmic
11 pricing using specific consumer data to make
12 disclosure to consumers; prohibiting the use of
13 electronic shelving labels by large food retailers;
14 clarifying what is not limited; prohibiting the use
15 of electronic shelving labels for personalized
16 algorithmic pricing or surveillance pricing;
17 prohibiting food retail establishments from engaging
18 in personalized algorithmic pricing or surveillance
19 pricing; prohibiting the collecting data of minors
20 for targeted advertising or personalized algorithmic
21 pricing; prohibiting food retail establishments from
22 using protected class data in setting prices;
23 providing exemptions; permitting the attorney general
24 to enforce act; creating civil penalties;
establishing a private right of action; providing for
codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 500 of Title 75A, unless there
is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Protecting
Consumers and Jobs from Predatory Pricing Act".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 501 of Title 75A, unless there
3 is created a duplication in numbering, reads as follows:

4 As used in this act:

5 1. "Algorithm" means a computational process that uses a set of
6 rules to define a sequence of operations including but not limited
7 to artificial intelligence (AI) systems and facial recognition
8 software;

9 2. "Clear and conspicuous disclosure" means disclosure in the
10 same medium as, and provided on, at, or near and contemporaneous
11 with every advertisement, display, image, offer, or announcement of
12 a price for which notice is required, using lettering and working
13 that is easily visible and understandable to the average consumer;

14 3. "Consumer" means a natural person who is seeking or
15 solicited to purchase, lease, or receive a good or service not for
16 resale in the ordinary course of the natural person's trade or
17 business, but for personal, family, or household use;

18 4. "Consumer data" means any data that identifies or could
19 reasonably be linked, directly or indirectly, with a specific
20 natural person or device, excluding location data;

21 5. "Dynamic and surveillance pricing" means pricing that
22 fluctuates dependent on conditions where algorithmic or AI models
23 retrain or recalibrate on information in near real time, excluding
24 promotional pricing offers, loyalty program benefits or other

1 temporary discounts or changes to pricing related to retention of
2 existing customers;

3 6. "Electronic shelving labels" (ESLs) means electronic and
4 wireless paper (E-paper) displays that present product and pricing
5 information;

6 7. "Food Retail Establishment" means a retail store that is
7 either:

8 a. over fifteen thousand (15,000) square feet in size and
9 sells primarily household foodstuff for offsite
10 including fresh produce, meats, poultry, fish, deli
11 products, dairy products, canned foods, dry foods,
12 beverages, baked foods, and prepared foods, other
13 household supplies or products are secondary to the
14 primary purpose of food sales; or

15 b. over eighty-five thousand (85,000) square feet and
16 with ten percent (10%) of their sales floor area
17 dedicated to the sale of nontaxable merchandise
18 including the sale of fresh produce, meats, poultry,
19 fish, deli products, dairy products, canned foods, dry
20 foods, beverages, baked foods, and prepared foods.

21 "Surveillance pricing" means offering or setting a
22 customized price for a good or service for a specific
23 consumer or group of consumers, based, in whole or in
24 part, on covered information collected through

1 electronic surveillance technology. Surveillance
2 pricing includes the use of technological methods,
3 systems, or tools, including, but not limited to,
4 sensors, cameras, device tracking, biometric
5 monitoring, or other forms of observation or data
6 collection, that are capable of gathering covered
7 information about a consumer's behavior,
8 characteristics, location, or other personal
9 attributes, whether in physical or digital
10 environments;

11 8. "Non-digital presentation of price" means:

- 12 a. a sign which offers the unit price for one or more
13 brands or sizes of a given commodity,
14 b. a sticker, stamp, sign, label, or tag, affixed to the
15 shelf upon which the commodity is displayed, and
16 c. a sticker, stamp, sign, label, or tag, affixed to the
17 consumer commodity itself. If a single sign or tag
18 does not provide the unit price information for more
19 than one brand or size of a given commodity, then the
20 following information shall be provided:
21 (1) the identity,
22 (2) the brand name,
23 (3) the quantity of the packaged commodity if more
24 than one package size per brand is displayed,

- 1 (4) the total sale price, and
- 2 (5) the price per appropriate unit. Where a sign
- 3 providing unit price information for one or more
- 4 sizes or brands of a given commodity is used, the
- 5 sign shall be located centrally as close as
- 6 practical to all items to which the sign refers,
- 7 and the unit price information displayed thereon
- 8 shall be presented in a clear, distinct, and
- 9 nondeceptive manner;

10 9. "Personalized algorithmic pricing" means dynamic pricing and

11 surveillance pricing derived from or set by an algorithm that uses

12 consumer data which may vary among consumers or groups of consumers;

13 10. "Person" means any human being or individual;

14 11. "Protected class data" means information about an

15 individual person or groups of people that directly, in combination,

16 or by implication identifies a characteristic that is legally

17 protected from discrimination under the laws of this state or under

18 federal law, including but not limited to ethnicity, national

19 origin, age, disability, sex, sexual orientation, gender identity

20 and expression, pregnancy outcomes and reproductive health care.

21 SECTION 3. NEW LAW A new section of law to be codified

22 in the Oklahoma Statutes as Section 502 of Title 75A, unless there

23 is created a duplication in numbering, reads as follows:

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1 A. Any food retail establishment who knowingly advertises,
2 promotes, labels, or publishes a statement, display, image, offer,
3 or announcement that uses personalized algorithmic pricing using
4 consumer data specific to a particular consumer is required to
5 provide a clear and conspicuous disclosure to consumers that "THIS
6 PRICE WAS SET BY AN ALGORITHM USING YOUR PERSONAL DATA".

7 B. In food retail establishments larger than fifteen thousand
8 (15,000) square feet the use of ESLs or any digital shelf display
9 technology shall be prohibited and a non-digital presentation of
10 price shall be used. This prohibition does not limit any food
11 retail establishment and any business to provide consumers, based on
12 previous purchase history, a discount, promotional price, or loyalty
13 program benefit.

14 C. The use of ESLs or any digital shelf display technology to
15 display personalized algorithmic pricing or surveillance pricing is
16 prohibited.

17 D. It is unlawful, for any reason, for any food retail
18 establishment to engage in personalized algorithmic pricing or
19 surveillance pricing.

20 E. Data of minors under seventeen (17) years of age shall not
21 be collected or used for targeted advertising or personalized
22 algorithmic pricing under any circumstances.

1 F. No food retail establishment shall use protected class data
2 in setting a price for, offering, marketing, or selling any good or
3 service if any of the following are true:

4 1. The use of that data has the effect of withholding or
5 denying any of the accommodations, advantages, and privileges
6 accorded to others; and

7 2. The price for such good or service is different from the
8 price offered to other individuals or groups based in whole or in
9 part on the use of protected class data.

10 G. Nothing in this act shall apply to financial services,
11 including but not limited to financial institutions, financial
12 institution affiliates, broker-dealers, registered investment
13 advisors, and entities that provide consumer credit products such as
14 credit cards, personal loans, and mortgages.

15 H. Nothing in this act shall apply to any insurer licensed,
16 regulated, or otherwise authorized to do business in the state of
17 Oklahoma under the insurance law, including any persons, agents, or
18 affiliates acting on behalf of such insurer.

19 SECTION 4. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 503 of Title 75A, unless there
21 is created a duplication in numbering, reads as follows:

22 A. Whenever there shall be a violation of any portion of this
23 act, an application may be made by the Attorney General in the name
24 of the people of the State of Oklahoma to a court or justice having

1 jurisdiction to issue an injunction, and upon notice to the
2 respondent of not less than five (5) days, to enjoin and restrain
3 the continuance of such violations: and if it shall appear to the
4 satisfaction of the court or justice that the respondent has, in
5 fact, violated any portion, an injunction may be issued by such
6 court or justice, enjoining and restraining any further violation,
7 without requiring proof that any person has, in fact, been injured
8 or damaged thereby.

9 B. Whenever the court shall determine that a violation of any
10 portion of this act has occurred, the court may impose a civil
11 penalty of not more than Seven Thousand Five Hundred Dollars
12 (\$7,500.00) for each violation. In connection with any such
13 application, the Attorney General is authorized to take proof and
14 make a determination of the relevant facts and to issue subpoenas in
15 accordance with the civil practice law and rules.

16 C. In addition to any other remedies provided in this act, any
17 person aggrieved by a violation of this act is entitled to bring an
18 action in a court of appropriate jurisdiction. Nothing in this
19 section shall in any way limit rights or remedies which are
20 otherwise available under law to the Attorney General or any other
21 person authorized to bring an action under this act.

22 SECTION 5. This act shall become effective November 1, 2026.
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24 60-2-15033 MJ 12/18/25